

United States District Court for the District of South Carolina

Piedmont Booksellers Guild v. City of Norvale

Case No. SYN-DSC-26-CV-0107 · Verified Complaint for Declaratory and Injunctive Relief

Filed January 5, 2026

Plaintiff Piedmont Booksellers Guild alleges as follows. The Guild is a nonprofit association of independent booksellers, small presses, librarians, and readers who organize free public book fairs at Cedar Commons in Norvale. Defendant City of Norvale owns the Commons and administers permits for organized uses of that public park. Since 2019, the Guild has held recurring Saturday fairs at the site, ordinarily gathering eighteen to twenty-eight local sellers and four to seven authors paid modest honoraria to read, answer questions, and discuss their work. Members sell books, but admission and every author program are free to the public.

This action concerns the City's Paid-Speaker Permit Ordinance, adopted August 18, 2025, and effective October 1, 2025. The ordinance requires a recurring-fair organizer to apply forty-five days before each event, identify every paid speaker with a proposed topic and time, and pay a base fee of \$240 plus \$45 for each paid speaker. It permits denial or conditions when officials identify documented crowd, traffic, or municipal-resource risks and requires written reasons. Vendors who sell goods but do not speak are exempt. The Guild does not allege that the ordinance classifies viewpoints on its face. It alleges that the speaker-specific burdens and open-ended risk judgments unconstitutionally burden protected expression.

Jurisdiction, Venue, and Parties

This Court has subject-matter jurisdiction under 28 U.S.C. §§ 1331 and 1343 because the Guild seeks relief under the First and Fourteenth Amendments and 42 U.S.C. § 1983. Declaratory relief is authorized by 28 U.S.C. §§ 2201 and 2202. Venue is proper in this district because the City, Cedar Commons, the relevant officials, and the events giving rise to these claims are located here. The Guild has associational standing because its member booksellers and participating authors face direct permit costs and planning restrictions, the interests at stake are germane to its mission, and the requested prospective relief does not require individualized damages proof.

The Guild plans six fairs at Cedar Commons during 2026, on February 14, April 11, June 13, August 8, October 10, and December 12. Its director reserves the park, coordinates tents and tables, and arranges readings with local and visiting authors. Invitations often mature within the last month before a fair, after a new release, regional travel opportunity, or bookseller request. Small vendors pool donations for author honoraria. Some participating shops operate on narrow margins and have told the Guild they cannot repeatedly absorb a speaker surcharge in addition to tents, insurance, and transportation.

The City is a municipal corporation responsible for park access, traffic planning, emergency coordination, and permit administration. The Guild recognizes that the City may adopt lawful, objective measures addressing those functions. It disputes that the challenged requirements are appropriately tailored or bounded.

The Challenged Permit Scheme

The ordinance applies when an organizer presents one or more persons who will receive money or another thing of value to address an audience at a recurring public event. An application must arrive at least forty-five calendar days before each event and list each paid speaker's name, topic, and scheduled time. A complete filing must include a site plan, expected attendance, traffic proposal, emergency contact, \$240 base fee, and \$45 for each paid speaker. The City may request supporting information and may deny or condition a permit for documented risks involving crowd movement, vehicle circulation, police staffing, fire or medical coverage, sanitation, or competing uses. A decision must state written reasons.

The text applies without regard to whether a speaker supports or criticizes the City, addresses politics or literature, or promotes any particular perspective. The Guild nevertheless alleges that requiring names and topics before a deadline makes expressive programming the trigger for additional cost and disclosure. A bookseller who quietly sells the same author's book is outside the paid-speaker rule, while an organizer who pays that author to read and take audience questions incurs the surcharge and must disclose the program in advance.

The ordinance does not state a firm deadline for the City's decision, define the quantity of proof necessary to establish a resource risk, provide an expedited path for a late substitution, or cap conditions by reference to costs caused by a particular event. The Guild alleges those omissions invite delay and inconsistent burdens even if administrators act in good faith.

Injury to the Guild and Its Members

The Guild began assembling its February 14 fair after the ordinance took effect. It can identify a core group of sellers months ahead, but author participation changes with publication schedules, illness, travel, and bookstore sponsorship. The forty-five-day deadline passed before the Guild knew all authors who could attend. A later-added paid author may require amendment, additional review, or exclusion from the program. The Guild has been unable to obtain assurance that a substitution will be accepted without renewed review, and it now must plan the approaching fair while the City considers the information already submitted.

For a fair with six paid authors, the stated charge is \$510 before insurance, equipment, or vendor expenses. Repeating that amount across six 2026 fairs would require the Guild to reduce honoraria, charge vendors more, solicit new donations, or present fewer speakers. Several members have said a higher vendor contribution would cause them to skip some dates. Authors with small regional audiences are most likely to be added late and least likely to draw a sponsor able to cover the added charge.

City staff have explained that author sessions can collect listeners near the central walk and that advance schedules allow staffing and traffic assignments. The Guild does not deny that a concentrated program can affect circulation. It alleges, however, that its past fairs have remained free of violence and have required only routine congestion management, with two minor medical calls over years of events. It contends ordinary attendance and site-plan rules could address those concerns without speaker-based fees and rigid disclosures.

Count One — Facial First Amendment Claim

The Guild incorporates the preceding allegations. Cedar Commons has long been open for community gatherings, recreation, leafleting, performances, and the exchange of ideas. The City's ability to coordinate scheduled use does not permit a licensing system that burdens speech more than necessary or leaves consequential conditions to inadequately bounded judgment. The Guild alleges the ordinance is facially invalid because it singles out compensated speaking within a broader commercial fair, imposes a cumulative charge tied to the number of speakers, compels disclosure of topics well before an event, and provides no prompt decision rule or adequate standard for the scope of conditions.

Compensation does not remove an author's reading or discussion from First Amendment protection. Nor does the Guild's sale of books convert the public program into unprotected conduct. The speaker fee increases with the quantity of protected presentations rather than with a demonstrated marginal municipal expense. The topic disclosure also asks the organizer to commit to expressive content at a time when its program remains fluid. Although the ordinance directs written reasons and uses neutral categories such as traffic and staffing, the Guild alleges those categories do not constrain how much risk is enough, what conditions may follow, or whether less burdensome measures must be considered.

The Guild seeks facial relief only to the extent warranted by the ordinance's operation in protected public events. It does not ask the Court to disable ordinary park scheduling, safety codes, or content-neutral rules supported by objective event characteristics.

Count Two — As-Applied First Amendment Claim

The Guild incorporates the preceding allegations and challenges application of the ordinance to its recurring Cedar Commons fairs. The Guild's historical event pattern is modest: temporary bookseller tables, several short author programs, no admission charge, and no amplified concert or parade. Listeners come and go while the fair remains open. The City may point to recurring curb congestion and the need to keep an emergency lane clear, but the Guild alleges those concerns arise from total attendance and layout, not whether a speaker receives an honorarium.

After the effective date, the Guild sought practical guidance about its 2026 series. City personnel stated that each date requires a separate timely application and that all paid authors must be listed with topics and times. They did not commit to accepting additions after the deadline. The Guild therefore must choose now among omitting speakers not yet confirmed, paying repeated charges from a limited budget, or risking that a later change will be rejected or conditioned. At least two prospective participants have deferred commitments because the program and payment terms remain uncertain.

As applied to these facts, the Guild alleges that the fixed lead time, per-speaker assessment, and discretionary risk conditions are not narrowly tailored to actual burdens created by its fairs and leave inadequate alternatives for timely literary programming. The Guild does not seek a right to obstruct streets, exceed safe capacity, or disregard written neutral conditions supported by event-specific evidence.

Irreparable Harm and Equitable Relief

Absent interim relief, the Guild must finalize its February program and spending decisions under the challenged rules. Lost opportunities to invite an author, present a reading, or assemble listeners cannot be restored after an event date passes. A later refund would not recreate a canceled exchange or restore the participation of a bookseller that withdrew. The Guild alleges that this ongoing chill constitutes irreparable injury and that nominal or retrospective monetary relief would be inadequate.

The balance of equities favors relief tailored to the expressive burdens while allowing the City to enforce generally applicable safety requirements. The Guild is prepared to submit site plans, attendance estimates, emergency contacts, and traffic information on a reasonable schedule. It will comply with capacity limits, fire lanes, sanitation requirements, and objective coordination measures imposed on comparable gatherings. The requested order need not prevent the City from responding to a documented, imminent risk or from charging a lawful fee tied to demonstrated administrative expense rather than the number of speakers.

The public has an interest both in safe use of Cedar Commons and in access to free literary events. The Guild alleges those interests can coexist under clearer, event-based standards. It asks the Court to declare the challenged speaker-list, topic, lead-time, fee, and insufficiently bounded conditioning provisions unconstitutional on their face or as applied, and to enjoin their enforcement while this action proceeds.

Prayer for Relief

The Guild respectfully requests judgment declaring that the Paid-Speaker Permit Ordinance violates the First and Fourteenth Amendments to the extent alleged; preliminary and permanent injunctions preventing enforcement of the unlawful requirements against the Guild's recurring Cedar Commons fairs; an order preserving the City's authority to apply lawful, objective safety and scheduling rules; reasonable attorney's fees and costs under 42 U.S.C. § 1988; and any further relief the Court finds just and proper. The Guild presently seeks prospective relief and does not demand compensatory damages.

The Guild further requests an orderly process that gives both sides notice of what is required. Any injunction may distinguish the per-speaker fee and advance topic disclosure from neutral site, attendance, emergency-access, and traffic information. The Guild is willing to confer promptly over temporary administration for its announced 2026 dates. It does not ask for priority over previously reserved uses of the Commons, exemption from actual capacity limits, or immunity from rules applied equally to nonexpressive events.

The allegations about past safety and congestion are based on records and participant observations presently available to the Guild. The City may possess additional dispatch or staffing information, and the Guild reserves the right to amend after disclosure. Its position is that the known history does not justify the challenged burdens, not that public officials lack any legitimate concern. The Guild intends to seek preliminary relief by separate motion on a schedule affording the City notice and an opportunity to respond.

I, Miriam Bellweather, executive director of Piedmont Booksellers Guild, declare under penalty of perjury that I have reviewed this complaint and that its factual allegations are true to my personal knowledge or, where stated on information and belief, are believed by me to be true. Executed January 5, 2026, in Norvale, South Carolina.

Respectfully submitted January 5, 2026, by counsel for Piedmont Booksellers Guild.